



File No.: EXP202309277

## RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On May 26, 2023, a written complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against AVIS ALQUILE UN COCHE S.A. (hereinafter, the respondent) requesting:

1. That the AEPD open a sanctioning file against AVIS for alleged very serious offenses.
2. That the AEPD require AVIS to immediately provide me with a copy of all documentation AVIS has regarding my person.
3. That the AEPD oversee the exercise by AVIS of all my rights as I have claimed.
4. That a sanction of at least €100,000 be imposed on AVIS for the very serious offense of appropriating a photocopy of my ID.
5. That a sanction of at least €100,000 be imposed on AVIS for the very serious offense of appropriating a photocopy of my driver's license.
6. That AVIS be imposed the sanctions that may correspond for failing to respond to my complaint and denying my rights.
7. That a sanction of €10,000 be imposed on AVIS, in favor of the complainant, for damages and moral harm.

The complainant states that on February 27, 2023, he went to the facilities of the respondent located at \*\*\*ADDRESS.1, to collect a rental vehicle that a company rented in his name. For this purpose, he was asked for his driver's license and ID, documentation that was scanned without requesting his authorization, indicating that, after this, he was informed that the vehicle could not be delivered because there was an incident in his name.

Therefore, he submitted a Complaint Form, and on March 1, 2023, he requested:

1. In accordance with the GDPR, I hereby appear before you to exercise each and every one of the rights referred to in the law on data protection (right of access, cancellation, rectification, opposition, deletion, etc.).
2. I demand that I be provided with a copy of absolutely all data that AVIS has about me, and that it be done in a reliable manner.
3. I request a document that authorizes AVIS to have data about me.
4. I demand the absolute cancellation of all my data.
5. I expressly prohibit the transfer of any data about me to third parties.

in an office of the respondent, without having received a response, after which, on April 10, 2023, he sent a burofax to the respondent requesting again the exercise of his rights, without receiving a reply. He provides a copy of the Complaint Form submitted, requests made both in person through a stamped form by the respondent, and via burofax. He also provides several emails sent to \*\*\*URL.1 requesting the contact address of the Data Protection Officer.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated, in summary, that they received the burofax sent by the complainant in which he requested his rights, initiating the procedures to address it. They state that on February 27, 2023, the complainant submitted a complaint form regarding an incident related to a reservation for the rental of a vehicle, and that, two days later, on March 1, he returned to the AVIS offices where he submitted a written request to exercise his rights.

"(...) Immediately, on March 2, 2023, our department responsible for managing complaint forms and other formal complaints sent by postal mail to the address of Mr. XXXX: (...) a letter responding to the complaint form and informing the client regarding the request to exercise his rights of access,

rectification, cancellation, etc. of his personal data, that for a proper processing of his request, he should contact our customer service department at the email \*\*\*EMAIL.1. We attach as document No. 7 a copy of the communication sent. (...)"

"On May 12, 2023, we proceeded to send Mr. XXXX all the information and documentation in our system regarding Mr. XXXX's personal data. The incident arose because this information was sent to the address listed as the contact for Mr. XXXX, which is not his personal address but that of RACE. (...)," since in the vehicle reservation that gives rise to this complaint, the email \*\*\*EMAIL.2 is listed, so communications were made to that address.

"(...) At the same time, on August 3, 2023, we contacted the complainant at the email address \*\*\*EMAIL.3 providing the requested information to his correct email address. In this regard, we want to confirm to the AEPD that we did not have this email address until we received the transfer of this complaint, obtaining this address from the documentation sent by this authority. We provide a copy of the email sent to the client."

C/ Jorge Juan, 6  
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3/9

"(...) Fourth, the claimant has been removed as a recipient of commercial communications from AVIS." Furthermore, the responding party indicates that "(...) we want to confirm that under no circumstances does the office of \*\*\*LOCALIDAD.1, nor any other AVIS office in Spain, copy or scan the personal documentation of clients. Only the presentation of such documentation is requested, and the relevant data for the formalization of the rental contract is manually entered into our system. (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied, given that in their response it is observed that the data protection rights raised by the claimant have not been fully addressed, specifically, there has been no response to the request for the deletion of their personal data. Consequently, on August 26, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. For not having duly addressed the right to deletion.

The aforementioned agreement granted the responding party a hearing procedure, so that within a period of ten working days they could present the arguments they deemed appropriate, stating, in summary, that "(...) In accordance with the documentation request related to the deletion of the personal data requested by the claimant, we have consulted the data protection department of AVIS, who have confirmed to us that the personal data of the client was canceled in April 2023." providing a copy of several screenshots from the platform they use to manage the exercise of rights to document it.

"On May 12, 2023, the data protection department proceeded to contact via email, at the address that supposedly corresponded to the claimant, \*\*\*EMAIL.3, informing that their request regarding their ARCO rights had been properly addressed. However, as we already stated and explained in our letter of August 5, 2023, this was not received by Mr. XXXX, a fact that has motivated the present complaint."

FOURTH: After examining the document submitted by the responding party, it is transferred to the claimant, so that, within a period of ten working days, they may formulate the arguments they consider appropriate, without formulating arguments within the established period.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on August 26, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

## III

### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such a request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the

affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

#### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

C/ Jorge Juan, 6

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6/9

e) personal data must be erased to comply with a legal obligation established in Union or Member State law applicable to the data controller;

f) personal data has been obtained in relation to the offering of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for erasure of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) to comply with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the data controller, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 would make it impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

#### Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this procedure, only the facts related to those rights will be analyzed and assessed, excluding other issues raised.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the complaining party requested access to their data, as well as the erasure of the same.

Following the submission of their complaint to this Agency and the transfer made to the responding party to state what they deemed appropriate, the latter sent an email to the complaining party providing the requested access. Therefore, the complaint was admitted for processing only regarding the right to erasure.

In the response that the responding party states it sent to the complaining party on March 2, 2023, they indicate that "(...) to exercise your rights of access, rectification, erasure, etc. of your personal data, which for proper...

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7/9

To process your request, you should contact our customer service department at the email address \*\*\*EMAIL.1(...)”

In the event that the exercise of rights is not submitted through the provided channel or at the corresponding office, the receiving body must forward the request received to the assigned Data Protection Officer or to the department responsible for managing such requests.

Furthermore, although it is appropriate for such a request to be addressed to the address declared by the data controller for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for it, in accordance with Article 12 of LODPGDD, which states:

“The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible for the affected party. The exercise of the right cannot be denied solely on the grounds that the affected party has chosen another means.”

Consequently, it has been established that the complainant exercised their right to erasure before the respondent.

While it is true that the respondent has provided screenshots from various applications they use to demonstrate that the complainant's data has been erased, no documentary evidence has been provided that allows for the consideration that a response was expressly given, as established by Article 12.4 of the GDPR.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Consequently, since the necessary justification for the receipt of the response by the complainant informing them about the decision made regarding the request to exercise rights is not provided, it is appropriate to uphold the complaint that initiated this procedure.

Regarding the complainant's request “That a fine of 10,000 euros be imposed on AVIS, in favor of the complainant, as compensation for damages and moral harm,” this must be directed to the ordinary jurisdictional bodies, in accordance with the provisions of Article 82.1 and 6 in relation to Article 79.2 of the GDPR, which establishes the following:

Article 79.2

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2. Actions against a controller or processor must be exercised before the courts of the Member State in which the controller or processor has an establishment. Alternatively, such actions may be exercised before the courts of the Member State in which the data subject has their habitual residence, unless the controller or processor is a public authority of a Member State acting in the exercise of its public powers.

Article 82.1 and 6

1. Any person who has suffered material or immaterial damage as a result of an infringement of this Regulation shall have the right to receive compensation from the controller or processor for the damages suffered.

6. Judicial actions in exercise of the right to compensation shall be brought before the competent courts in accordance with the law of the Member State indicated in Article 79, paragraph 2.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to instruct AVIS ALQUILE UN COCHE S.A. with NIF A28152767, to send the complainant a certification addressing the requested right or to deny it with justification indicating the reasons why the request cannot be met, within ten working days following the notification of this resolution, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to AVIS ALQUILE UN COCHE S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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9/9

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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